

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 823

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO COUNTY FAIR BOARDS; AMENDING SECTION 22-202A, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DESIGNATION OF A COUNTY FAIR BOARD AS AN ADVISORY BOARD TO THE BOARD OF COUNTY COMMISSIONERS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-202A, Idaho Code, be, and the same is hereby amended to read as follows:

22-202A. DESIGNATION OF COUNTY FAIR BOARD AS ADVISORY BODY. (1) In counties with a population of two hundred thousand (200,000) persons or more, on or before January 1, 2024, the board of county commissioners may provide by ordinance that the county fair board shall function as an advisory board to the board of county commissioners. If such an ordinance is adopted, the board of county commissioners shall retain and may exercise the powers, duties, and responsibilities otherwise charged to the county fair board by the provisions of this chapter. Any such ordinance shall set forth the powers, duties, responsibilities, compensation, and terms of office of the county fair board and may provide for any such other rules and regulations under which the county fair board shall advise the board of county commissioners and conduct its operations. Any such ordinance may be repealed at any time, and if repealed, the provisions of this chapter shall apply as if no such ordinance had been adopted.

(2) The provisions of this section shall not be applicable to:

(a) ~~fair~~ Fair districts in two (2) or more counties organized pursuant to chapter 3, title 22, Idaho Code; or

(b) Counties in which the population reached two hundred thousand (200,000) persons or more after January 1, 2024.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.